Banner Health Privacy Statement

Last Updated: August 2024

This Privacy Statement describes and applies to the information you provide, or we collect from you when visiting or using voice, mobile, or desktop devices to access Banner Health platforms, tools, and applications, BannerHealth.com, and other Banner Health websites (collectively, "Services"). This Statement also explains how we use the information, when we disclose it, and how you can manage the information. This Privacy Statement is part of Banner Health's Terms of Use.

This Privacy Statement does not apply to protected health information (PHI) that Banner Health obtains in connection with the provision of health care or other health care-related services to patients. PHI is subject to the Health Insurance Portability and Accountability Act (HIPAA) and Banner Health's Notice of Privacy Practices.

1. The Information we collect.

When you use the Services, we receive and collect certain information that may be linked to or reasonably linkable to you, for example, your name, email address, billing address, shipping address, phone number, social security number, and credit card information ("Personal Data"). The Personal Data that we receive and collect depends on what you do when you use the Services. The Personal Data includes automatically collected information and information you actively submit as described below.

Personal Data may be collected via cookies, web beacons, pixels, or other methods.

Automatically Collected Information.

Some information is automatically collected when you use the Services. This information may include the following items:

- The name of the domain and host from which you access the internet, including the Internet Protocol (IP) address of the device you are using and the IP address of your internet service provider;
- Location data including your estimated general location based on your IP address and more specific location data where available through your operating system including your GPS location;
- The type and version of internet browser software you use, your operating system, and the type, version, and name of your device;
- The date and time you access the Services, the length of your stay, and the specific pages, media, applications, or forms that you access while using the Services;
- The internet address of the website from which you linked directly to the Services and, if applicable, the search engine that referred you and any search strings or phrases that you entered into the search engine to find the Services; and
- Demographic information concerning the country of origin of your device and the language(s) used by it.

Information You Actively Submit.

In order to use some of the Services, you will need to provide Personal Data. For example, Personal Data is required when you want to do things like (i) submit a job application; (ii) make an online donation; (iii) sign up for a class, event, or other service; (iv) contact us; (v) participate in a text or chat session; (vi) purchase merchandise from the Banner Store; (vii) reserve a spot or make an appointment to receive services offered by Banner Health; (viii) pre-register for services; (ix) create an account; or (x) access other digital services.

Personal Information about Children.

In limited circumstances, some Services can be utilized by children who have not reached the age of majority, which is 18 years of age in most states. This includes, but is not limited to, scheduling appointments relating to Services that the child can consent to receive and providing health information. Other than as noted above, if you have not reached the age of majority, do not use, or provide any information to obtain Services. If you believe we may have improperly received information from or about a child who has not reached the age of majority, please contact us. The Services are not intended for and may not be used by children under the age of 13. If we learn that a child under the age of 13 has provided Personal Data to us, in accordance with the Children's Online Privacy Protection Act (see the Federal Trade Commission's website for more information about this Act), we will delete the child's Personal Data from our files to the extent technologically possible and permissible under applicable laws.

2. How we Use and Share Personal Data.

When you submit Personal Data through the Services, we may use the Personal Data in one or more of the following ways:

- To process, complete or otherwise act upon or respond to your request or reason for submitting the Personal Data;
- To register or verify your identity in connection with a service or feature that you are attempting to access or obtain;
- To communicate with you about your request or reason for submitting the Personal Data;
- To provide additional information to you about the services, including digital services offered by Banner Health, tips and education, and other health care topics;
- To provide information to you about Banner Health's affiliates and joint venture partners and the services that they provide as well as information about other healthcare related entities and services;
- To monitor the usage of the Services, assess performance, ensure technological compatibility with your device, and understand the relative importance of the information provided via the Services. We may also use this information to conduct statistical analyses on visitors' usage patterns and other aggregated data; or
- To assist, when necessary, in protecting our rights or property, enforcing the provisions of our Privacy Statement or Terms of Use, or preventing harm to you or others.

We do not sell Personal Data to third parties.

We may share your Personal Data with third parties under the limited circumstances listed below:

- Credit card authorization companies receive the credit card number and other Personal Data only for verification and to process a transaction.
- Personal Data is disclosed to third parties when necessary to process a particular request you have made, complete a purchase order for merchandise, deliver your purchase, or process a donation.
- To Banner Health's affiliates and joint venture partners so that they can provide information about the services they provide.
- Personal Data submitted regarding a job application may be disclosed to third parties to conduct background checks, obtain credit reports, verify prior employment, check references, and for any other lawful purpose that is in our judgment reasonably necessary to our interviewing and hiring process.
- Personal Data may be subject to disclosure in response to judicial or other governmental subpoenas, warrants, or court orders served on Banner Health in accordance with their terms, or as otherwise required by applicable law.
- Personal Data may be subject to disclosure to protect our rights or property, to enforce the provisions of our Privacy Statement or Terms of Use, or to prevent harm to you or others.
- Personal Data may be disclosed and transferred if Banner Health or its business is sold or offered for sale to another company or person, a petition for relief under the United States Bankruptcy Laws is filed by or against Banner Health, or Banner Health becomes subject to an order of appointment of a trustee or receiver.
- If you correspond with us, we will share the correspondence, including any information provided in the correspondence, with employees, volunteers, representatives, or agents most capable of addressing the correspondence. We will retain the correspondence until we have provided you with a response and may subsequently retain the correspondence for our records.

All comments, feedback, suggestions, ideas, and other submissions to Banner Health regarding your use of the Services (collectively "Comments") may be retained by Banner Health and will remain the property of Banner Health. Unless otherwise prohibited by law, you agree that Banner Health may use or disclose Comments in any manner, without restriction and without compensation to you. See also Banner Health Social Media Terms of Use Agreement, or view the Social Media Terms of Use en Español.

3. Security of your Personal Data.

We use reasonable and appropriate physical, technical, and administrative security measures and safeguards to protect the confidentiality and security of Personal Data. We ensure that sensitive Personal Data is encrypted where possible or required by law. Access to Personal Data is limited to individuals who need access and appropriate security is in place to avoid unauthorized sharing of Personal Data.

While we take reasonable security measures to protect Personal Data, we cannot guarantee its security. We cannot promise or guarantee that hackers, cybercriminals, or other unauthorized third parties will not be able to defeat our security, and improperly collect, access, steal, or modify Personal Data.

4. Linking to Third-Party Websites.

This Privacy Statement does not apply to third-party applications or websites. When, through utilizing the Services, you click on links that take you to a third-party application or website, you will be subject to the applicable third-party's terms of use and privacy policy. Banner Health accepts no responsibility for any website, application, or other tool owned and operated by a third party (collectively, "third-party offerings") or for any loss or damage that may arise from your use of third-party offerings . If you decide to access a third-party offering, you do so entirely at your own risk and subject to the terms and conditions of use for the third-party offering. We encourage you to read the posted privacy statement of any and every site you visit, whether you are linking from our Services or browsing on your own.

5. Access to and Managing your Personal Data.

We believe it is important for you to be able to find out what Personal Data we have collected through the Services and to manage that Personal Data. If you have utilized the Services, you can contact us by email, telephone, or through the use of a digital channel (see how to contact us at the end of this Privacy Statement):

- To request access to or obtain the Personal Data we maintain about you. We reserve the right to limit the number of times you can request access to or obtain the Personal Data we maintain about you and to charge you for responding to such requests as permitted by applicable laws.
- To correct or delete* the Personal Data we maintain about you. We want the Personal Data we maintain about you to be as complete and accurate as possible. If you believe that any Personal Data we maintain about you is inaccurate, incomplete, or incompatible with the purposes for which it was provided or the purposes for which you authorized us to use it, please let us know.
- To appeal a decision we made or action we took on a request for access or a request to correct or delete* your Personal Data.

* We can only delete Personal Data to the extent technologically possible and permissible under applicable laws.

Do Not Track. The Banner Health website does not currently recognize if your browser sends a "do not track" signal or similar mechanism to indicate you do not wish to be tracked or receive interest-based ads. Other Services may recognize a "do not track" signal or similar mechanism to indicate you do not wish to be tracked or receive interest-based ads.

6. Consent to the Processing of Personal Data in the United States.

The Services are intended for use only by residents of the United States. If you are a citizen of the European Economic Area (EEA) or other jurisdiction outside of the U.S., please note that in order to provide the Services to you, we may send and store your Personal Data outside of the EEA, including the U.S. Accordingly, your Personal Data may be transferred outside of the country where you reside or are located, including to countries that may not or do not provide the same level of protection for your Personal Data. By using and accessing the Services, users who reside or are in countries outside of the U.S. agree and consent to the transfer to and processing of Personal Data on servers located outside of the country where they reside, and that the protection of such information may be different than required under the laws of their residence or location.

7. What to do about Suspected Violations of this Privacy Statement.

If at any time you believe Banner Health has not adhered to this Privacy Statement, please notify us using the method identified below. We will make all commercially reasonable efforts to promptly address your concerns.

8. Changes to this Privacy Statement.

This Privacy Statement was last modified on the date noted above. If we change this Privacy Statement, we will post the most recent version of the Privacy Statement on BannerHealth.com so you are always aware of the information we collect, how we use it, how we protect it, and when we disclose it. Unless we clearly express otherwise, we will use Personal Data in accordance with the most recent version of the Privacy Statement.
YOU ARE HEREBY ADVISED THAT YOUR CONTINUED USE OF THE SERVICES CONSTITUTES YOUR ACCEPTANCE OF ANY AMENDMENTS TO AND THE MOST RECENT VERSION OF THIS PRIVACY STATEMENT.

9. Questions and Comments.

If you have any questions or comments concerning this Privacy Statement, please contact us through our online form, by emailing Privacy@BannerHealth.com, or by calling (602) 747-8157.

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